

24STCV15836 24STCV15836

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-06

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Case Number: 24STCV15836 Hearing Date: August 6, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV15836

ELVIRA

MORALES, AN INDIVIDUAL vs CALOP BUSINESS SYSTEMS INC., A CALIFORNIA
CORPORATION

August

6, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S RENEWED MOTION TO COMPEL DEFENDANT CALOP BUSINESS SYSTEMS INC.'S
FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET TWO), AND REQUEST FOR
MONETARY SANCTIONS AGAINST DEFENDANT AND ITS COUNSEL OF RECORD.

RULING:

The Court denies the Motion.

Defendant to give notice.

I.

BACKGROUND

On June 24, 2024, ELVIRA

MORALES (Plaintiff) filed a Complaint against an airport operator, CALOP BUSINESS SYSTEMS INC. (Defendant), listing the following Causes of Action:

1.

SEXUAL HARASSMENT [Cal. Gov. Code § 12940(j)];

2.

FAILURE TO TAKE ALL REASONABLE STEPS TO PREVENT SEXUAL HARASSMENT [Cal. Gov. Code § 12940 et seq.];

3.

DISABILITY DISCRIMINATION [Cal. Gov. Code § 12940, et seq.];

4.

FAILURE TO PROVIDE REASONABLE ACCOMMODATION [Cal. Gov. Code § 12940, et seq.];

5.

FAILURE TO ENGAGE IN GOOD FAITH INTERACTIVE PROCESS [Cal. Gov. Code § 12940, et seq.];

6.

VIOLATION OF CALIFORNIA FAMILY RIGHTS ACT ("CFRA") [Cal. Gov. Code § 12945.2];

7.

RETALIATION [Cal. Gov. Code § 12940, et seq.];

8.

FAILURE TO PROVIDE SICK LEAVE [Cal. Labor Code §§ 233, 246.5 et seq.]

9.

WRONGFUL TERMINATION [in Violation of Public Policy].

Plaintiff alleges that she experienced sexual harassment and disability discrimination on the job, and the employer abruptly fired her after her work-related injury.

On June 30, 2026, Plaintiff filed the Renewed Motion to Compel Defendant CALOP BUSINESS SYSTEMS INC.'S Further Responses to Special Interrogatories (Set Two), and Request for Monetary Sanctions Against Defendant and Its Counsel of Record.

Defendant opposes and requests monetary sanctions (\$) against Plaintiff and counsel, based on arguments such as that the renewed motion is not statutorily authorized and the Court already ruled on the merits.

II.

LEGAL STANDARD

A renewed motion may be filed more than 10 days after the original motion was denied, where based upon new law or facts. (UAS Management, Inc. v. Mater Misericordiae Hosp. (2008) 169 Cal.App.4th 357, 367-368.)

A motion can be subject to statutory requirements under Code of Civil Procedure section 1008, regardless of its title, if it raises the same issues previously ruled upon. (Leibert v. Transworld Systems, Inc. (1995) 32 Cal.App.4th 1693, 1699.)

“Section 1008’s purpose is “ ‘ “to conserve judicial resources by constraining litigants who would endlessly bring the same motions over and over, or move for reconsideration of every adverse order and then appeal the denial of the motion to reconsider.” ’ ” (Even Zohar Constr. & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 840, 844.)

“Subdivision (d) of section 1008 provides that: ‘(d) A violation of this section may be punished as

a contempt and with sanctions as allowed by Section 128.7.” (In re Marriage of Barthold (2008) 158 Cal.App.4th 1301, 1314, fn.12.)

III.

ANALYSIS

Plaintiff again requests

further responses to special interrogatories (set two), numbers 72, 73, 74, about witness contact information, unrelated to the Sensitive Security Information (SSI) objections. Plaintiff also requests sanctions, against Defendant and counsel, in the sum of \$3,360.00.

Defendant argues that Plaintiff's motion is a disguised one for reconsideration and persists in seeking discovery ordered denied on April 16, 2026.

“Whether the ‘new’ facts

alleged on a motion for renewal are sufficient to satisfy the requirements of section 1008, subdivision (b), is a question confided to the sound discretion of the trial court, with the exercise of which we will not interfere absent an obvious showing of abuse.” (Graham v.

Hansen (1982) 128 Cal.App.3d 965, 971.) Analogously, a new fact that is collateral to the merits, such as counsel's desire to orally argue, does not warrant reconsideration. (Gilberd v. AC

Transit (1995) 32 Cal.App.4th 1494, 1500; Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.) “[M]otions to reconsider allow the trial court to consider new facts or law relevant to its order....” (Morton v. Wagner

(2007) 156 Cal.App.4th 963, 973. (Underscoring added.) Cf. Wiz Tech., Inc. v. Coopers & Lybrand (2003) 106 Cal.App.4th 1, 17-18 [no relevant basis for reconsideration shown].)

Preliminarily, the Court

finds that the renewed Motion is unauthorized, where based on the new fact of discovery reopened, which is impermissibly collateral to the merits and irrelevant to the substantive discovery ruling.

As for the merits, the

Court stands upon the Minutes entered April 16, 2026, including determinations that there is no governing case law guidance as to whether a state court could decide SSI discovery objections or order submission the discovery objection to the TSA to obtain an order regarding the SSI determination, and Defendant

reasonably had stated that, under 49 C.F.R. 1520.5(b)(11), identifying certain transportation security personnel alone could be SSI. (Cf. *Garcia v. Superior Court* (2007) 42 Cal.4th 63, 75 [right against self-incrimination precludes compelled disclosures of witnesses that could serve as a “link in a chain” of evidence tending to show guilt].)

Plaintiff cites no governing law on point. “A legal proposition asserted without apposite authority necessarily fails.” (*People v. Taylor* (2004) 119 Cal.App.4th 628, 643.) California courts are not bound to follow decisions of federal trial courts. (*People v. Superior Court* (2002) 103 Cal.App.4th 409, 431.) Rulings in other trial court cases are irrelevant absent some additional showing like the elements of claim or issue preclusion. (*Drummond v. Desmarais* (2009) 176 Cal.App.4th 439, 448.)

IV.

CONCLUSION

Therefore, the Court denies the Motion and the opposing sanctions request failing to evidence any dollar amount of sanctions.